

24STCV21891 24STCV21891

County: los-angeles

Division: Civil Law and Motion

Department: 414

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Case Number: 24STCV21891 Hearing Date: September 18, 2026 Dept: 414

24STCV21891 Jenny Song v. Kevin Song, et al.

Friday, September
18, 2026

[TENTATIVE]

ORDER TAKING OFF CALENDAR MOTION OF U.S. BANK, NATIONAL ASSOCIATION (1) TO COMPEL THE DEPOSITION OF HEEJAE WON AND THE PRODUCTION OF DOCUMENTS, (2) FOR OSC RE CONTEMPT AGAINST HEEJAE WON, AND (3) FOR SANCTIONS

I.

BACKGROUND

The second

amended complaint arises from a dispute over the validity of a deed of trust recorded against real property located at 606-608 N. Fuller Avenue in Los Angeles, alleged to be owned by Plaintiff. Plaintiff alleges that her estranged father, Kevin Song, ("Kevin") used the property as security for a loan obtained from Velocity Commercial Capital LLC ("Velocity"). Kevin allegedly incorporated a company with the same name as Plaintiff's previously dissolved company, Lioness Investment, Inc. Kevin allegedly procured the loan by falsely claiming that his company with the same name owned the Fuller Avenue real property, which served as security for the \$1,295,000 loan. Velocity subsequently recorded a Deed of Trust (DOT), which Plaintiff alleges is void.

Defendant,

US Bank National Association ("USB") (transferee of the Velocity note), filed a

cross-complaint against Kevin Song, Angela Song, and Lioness Investment, Inc. for breach of contract, fraud, negligent misrepresentation, indemnity, and related claims.

USB moves

to compel the deposition of Heejae Won and to order production of requested documents within three weeks of the Court's order. USB also asks for an order setting a contempt hearing and to impose monetary sanctions.

II.

DISCUSSION

The deponent, Hee Jae Won ("Won") is not a party to this action. Won purportedly received the funds from the loan obtained by Kevin from Velocity.

A written notice and all moving papers

supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent "must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record." (Cal. Rules of Court, Rule 3.1346.)

The proof of service attached to the motion does not indicate that the deponent was served with the motion in any manner. Accordingly, the motion is TAKEN OFF CALENDAR for defective service of the motion.